

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1803
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 41, chapter 3, article 7, Arizona Revised
3 Statutes, is amended by adding section 41-610.03, to read:

4 41-610.03. Veterans' benefits; claims; prohibition;
5 compensation; disclosure; enforcement;
6 applicability; definitions

7 A. A PERSON MAY NOT ACT AS AN AGENT OR AN ATTORNEY IN PREPARING,
8 PRESENTING OR PROSECUTING ANY VETERANS' BENEFITS MATTER UNLESS THE PERSON
9 IS RECOGNIZED FOR SUCH PURPOSES BY THE UNITED STATES DEPARTMENT OF
10 VETERANS AFFAIRS.

11 B. A PERSON THAT IS NOT ACTING AS AN AGENT OR ATTORNEY MAY ONLY
12 RECEIVE COMPENSATION FOR ADVISING, CONSULTING, GUIDING, COACHING OR
13 TRAINING AN INDIVIDUAL FOR AN INITIAL CLAIM, SUPPLEMENTAL CLAIM OR HIGHER
14 LEVEL REVIEW. A PERSON THAT IS NOT ACCREDITED AND RECEIVES COMPENSATION
15 PURSUANT TO THIS SECTION SHALL FILE A COPY OF ANY STANDARD FEE AGREEMENT
16 OR SERVICE CONTRACT WITH THE ATTORNEY GENERAL'S OFFICE. ANY FEE AGREEMENT
17 OR SERVICE CONTRACT THAT DEVIATES FROM THE STANDARD FEE AGREEMENT OR
18 SERVICE CONTRACT PREVIOUSLY FILED WITH THE ATTORNEY GENERAL'S OFFICE MUST
19 ALSO BE FILED WITH THE ATTORNEY GENERAL'S OFFICE.

20 C. A PERSON THAT IS NOT ACTING AS AN AGENT OR ATTORNEY MAY NOT
21 RECEIVE COMPENSATION FOR REFERRING AN INDIVIDUAL TO ANOTHER PERSON TO
22 ADVISE, CONSULT, ASSIST, GUIDE, COACH OR TRAIN THE INDIVIDUAL REGARDING A
23 VETERANS' BENEFITS MATTER.

24 D. BEFORE RECEIVING COMPENSATION PURSUANT TO SUBSECTION B OF THIS
25 SECTION, THE PERSON SHALL PREPARE A WRITTEN AGREEMENT THAT IS SIGNED BY
26 ALL THE PARTIES INVOLVED AND THAT CONTAINS THE FOLLOWING:

27 1. THE TERMS OF THE AGREEMENT, INCLUDING THE FEE STRUCTURE FOR THE
28 SERVICES BEING PROVIDED.

1 2. A PROVISION ALLOWING FOR A THREE-DAY PERIOD IN WHICH THE
2 INDIVIDUAL RECEIVING THE SERVICES MAY CANCEL THE AGREEMENT WITHOUT A
3 FINANCIAL PENALTY. THE THREE-DAY PERIOD EXPIRES ON THE THIRD DAY AT
4 MIDNIGHT AFTER THE CONTRACT IS SIGNED BY ALL THE PARTIES.

5 3. THE FOLLOWING DISCLOSURE IN TWELVE-POINT FONT PLACED IN A
6 READILY NOTICEABLE AND EASILY IDENTIFIABLE PLACE IN THE WRITTEN AGREEMENT
7 [WITH A SEPARATE LINE THAT MUST BE INITIALED BY THE INDIVIDUAL RECEIVING
8 SERVICES]:

9 THIS BUSINESS IS NOT ACCREDITED BY THE UNITED STATES
10 DEPARTMENT OF VETERANS AFFAIRS AND CANNOT ASSIST WITH AN
11 APPEAL TO THE BOARD OF VETERANS' APPEALS. THIS BUSINESS IS
12 NOT SPONSORED BY, ENDORSED BY OR AFFILIATED WITH THE ARIZONA
13 DEPARTMENT OF VETERANS' SERVICES OR THE UNITED STATES
14 DEPARTMENT OF VETERANS AFFAIRS OR ANY OTHER FEDERALLY
15 CHARTERED VETERANS' SERVICE ORGANIZATION. THE ARIZONA
16 DEPARTMENT OF VETERANS' SERVICES, THE UNITED STATES DEPARTMENT
17 OF VETERANS AFFAIRS, A LOCAL VETERANS' SERVICE ORGANIZATION OR
18 A FEDERALLY CHARTERED VETERANS' SERVICE ORGANIZATION MAY BE
19 ABLE TO PROVIDE YOU WITH THIS SERVICE FREE OF CHARGE.

20 E. A PERSON RECEIVING COMPENSATION PURSUANT TO SUBSECTION B OF THIS
21 SECTION SHALL ALWAYS ACT IN THE INDIVIDUAL'S BEST INTEREST.

22 F. A PERSON RECEIVING COMPENSATION PURSUANT TO SUBSECTION B OF THIS
23 SECTION MAY NOT DO ANY OF THE FOLLOWING:

24 1. GUARANTEE, TO AN INDIVIDUAL THE PERSON IS ADVISING, CONSULTING,
25 ASSISTING, GUIDING, COACHING OR TRAINING REGARDING A VETERANS' BENEFITS
26 MATTER, THAT THE INDIVIDUAL WILL RECEIVE A SPECIFIC VETERANS' BENEFIT OR A
27 SPECIFIC LEVEL, PERCENTAGE OR AMOUNT OF VETERANS' BENEFITS.

28 2. USE PREDATORY ADVERTISING PRACTICES, INCLUDING GUARANTEEING A
29 SUCCESSFUL OUTCOME OR AN INCREASE IN VETERANS' BENEFITS.

30 3. EMPLOY A MEDICAL PROVIDER TO CONDUCT A MEDICAL EXAMINATION.

31 4. USE AN INTERNATIONAL CALL CENTER OR DATA CENTER FOR PROCESSING A
32 VETERAN'S PERSONAL INFORMATION.

33 5. GAIN DIRECT ACCESS TO ANY VETERAN'S PERSONAL MEDICAL, FINANCIAL
34 OR GOVERNMENT BENEFITS INFORMATION.

35 6. CHARGE AN UP-FRONT FEE OR A NONREFUNDABLE FEE FOR ADVISING,
36 CONSULTING, ASSISTING, GUIDING, COACHING OR TRAINING AN INDIVIDUAL
37 REGARDING A VETERANS' BENEFITS MATTER. ANY COMPENSATION RECEIVED PURSUANT
38 TO THIS SECTION SHALL BE CONTINGENT ON THE VETERAN'S BENEFITS BEING
39 INCREASED. COMPENSATION IS CAPPED AT A ONETIME FEE THAT IS NOT MORE THAN
40 FIVE TIMES THE MONTHLY AMOUNT OF THE VETERAN'S INCREASE IN BENEFITS.

41 7. CONTACT THE UNITED STATES DEPARTMENT OF VETERANS AFFAIRS BY
42 IMPERSONATING THE INDIVIDUAL OR AN ACCREDITED REPRESENTATIVE OR BY
43 INITIATING CONTACT WITH THE UNITED STATES DEPARTMENT OF VETERANS AFFAIRS
44 WHILE FALSELY REPRESENTING THAT THE PERSON HAS AUTHORITY TO ACT ON BEHALF
45 OF THE INDIVIDUAL.

1 8. SUBMIT PAPERWORK, FORMS, EVIDENCE OR ANY DOCUMENTATION TO THE
2 UNITED STATES DEPARTMENT OF VETERANS AFFAIRS OR TO ANY GOVERNMENTAL ENTITY
3 ON BEHALF OF THE INDIVIDUAL.

4 9. RECEIVE, HOLD OR EXERCISE A POWER OF ATTORNEY TO ACT ON BEHALF
5 OF THE INDIVIDUAL IN CONNECTION WITH A VETERANS' BENEFITS MATTER.

6 10. REPRESENT OR PURPORT TO REPRESENT THE INDIVIDUAL IN ANY
7 COMMUNICATION, NEGOTIATION, HEARING, REVIEW OR PROCEEDING BEFORE THE
8 UNITED STATES DEPARTMENT OF VETERANS AFFAIRS OR ANY GOVERNMENTAL ENTITY.

9 G. A VIOLATION OF THIS SECTION CONSTITUTES AN UNLAWFUL PRACTICE
10 UNDER SECTION 44-1522. THE ATTORNEY GENERAL MAY INVESTIGATE AND TAKE ANY
11 APPROPRIATE ACTION PURSUANT TO TITLE 44, CHAPTER 10, ARTICLE 7.

12 H. AN INDIVIDUAL WHO HAS CONTRACTED WITH A PERSON THAT OPERATES
13 PURSUANT TO THIS SECTION HAS A CAUSE OF ACTION AGAINST THE PERSON IF THE
14 PERSON FAILS TO COMPLY WITH THIS SECTION.

15 I. THIS SECTION DOES NOT APPLY TO, LIMIT OR EXPAND THE REQUIREMENTS
16 IMPOSED ON AGENTS, ATTORNEYS OR OTHER REPRESENTATIVES WHO ARE ACCREDITED
17 AND REGULATED BY THE UNITED STATES DEPARTMENT OF VETERANS AFFAIRS.

18 J. FOR THE PURPOSES OF THIS SECTION:

19 1. "COMPENSATION" MEANS ANY MONEY, ITEM OF VALUE OR ECONOMIC
20 BENEFIT CONFERRED ON OR RECEIVED BY AN INDIVIDUAL IN RETURN FOR SERVICES
21 PROVIDED BY A PERSON.

22 2. "HIGHER LEVEL REVIEW" MEANS THE DE NOVO REVIEW OF A CLAIM THAT
23 IS REEXAMINED BY A HIGHER LEVEL REVIEWER.

24 3. "INITIAL CLAIM" HAS THE SAME MEANING PRESCRIBED IN 38 CODE OF
25 FEDERAL REGULATIONS SECTION 3.1.

26 4. "PERSON" INCLUDES ANY CORPORATION, TRUST, PARTNERSHIP,
27 INCORPORATED OR UNINCORPORATED ASSOCIATION OR OTHER LEGAL ENTITY.

28 5. "SUPPLEMENTAL CLAIM" HAS THE SAME MEANING PRESCRIBED IN 38 CODE
29 OF FEDERAL REGULATIONS SECTION 3.1.

30 6. "VETERANS' BENEFITS MATTER" MEANS ANY BENEFIT, PROGRAM, SERVICE,
31 COMMODITY, FUNCTION OR STATUS THE ENTITLEMENT TO WHICH IS DETERMINED BY
32 THE DEPARTMENT OF VETERANS' SERVICES OR THE UNITED STATES DEPARTMENT OF
33 VETERANS AFFAIRS PERTAINING TO VETERANS, THEIR DEPENDENTS, THEIR SURVIVORS
34 AND ANY OTHER INDIVIDUAL ELIGIBLE FOR SUCH BENEFITS.

35 Enroll and engross to conform

36 Amend title to conform

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